

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 13, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne (arriving at 6:12 p.m.), Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Shanor moved to approve Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on September 22, 2014. Motion (per Consent Agenda) carried.

Mr. Brown and Mr. Shanor each declared a conflict of interest (business interest in vouchers payable to Ameri-Tech HVAC Services and First Judicial District Attorney's Office respectively) and vacated Council Chambers. Mr. Allen moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Discussion followed on a voucher payable to Gregory Allen Crisp for services involving hosting of the Mayor's Council for Persons with Disabilities (MCPD) website. Comments included concerns that MCPD Board members had not approved the services and did not have administrative editing rights to the site, and that certain content on the website was not applicable to the MCPD. Mayor Kaysen provided information relative to the formation and structure of the MCPD, noting that monies raised by the MCPD were being utilized for payment of the voucher; advised that Mr. Crisp had agreed to provide website services a few years ago when he was a member of the Board, and stated he had not received anything official from the MCPD Board indicating Mr. Crisp's services were being discontinued. Ms. Williams moved to amend by removing the voucher for Mr. Crisp from the payables list. Discussion followed on the time-frame of services provided relative to the voucher; non-MCPD information on the website, and allowing time for communication with the MCPD Board prior to acting on the voucher. Motion to amend carried. Voting "yes" -- all members of the governing body present in Council Chambers with the exception of Dr. Rinne "abstaining" (due to his joining the meeting during discussion on the motion to amend). Request was made to provide Council members with an update on the Christensen Road Overpass Project pursuant to 2 affiliated vouchers on the payables list. Mayor Kaysen advised he would request the MPO (Metropolitan Planning Organization) Director to provide an update. Main motion to approve payment of vouchers, excluding the voucher payable to Mr. Crisp, carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown and Mr. Shanor returned to Council Chambers.

ORDINANCE - Vacating a portion of Alexander Avenue and 13th Street, adjacent to Blocks 444, 445, 452 and 453, Original City, Cheyenne, Wyoming (located south of E. Lincolnway, west of Dunn Avenue). Reporting for Public Services Committee, Mr. Shanor moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body. (#4042)

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MR-1 Medium Density Residential-Established to MUB Mixed-Use Business Emphasis for Lots 7 and 8, Block 509, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of W. 10th Street and Bent Avenue). Mr. Shanor moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body. (#4043)

ORDINANCE - Amending Section 6.04.020, Definitions, of Chapter 6.04, Definitions, Administration and Enforcement; Creating a new Section 6.08.190, Community Cat Initiative, of Chapter 6.08, Animal Care and Control Regulations Generally; and Amending Section 6.20.020, Animal Impoundment, of Chapter 6.20, Impoundment, of Title 6, Animals, of the Code of the City of Cheyenne, Wyoming -- referred to Public Services Committee (sponsor -- Ms. Broyles).

ORDINANCE - Amending Section 12.04.010, Obstructions on Streets, and Section 12.04.080, Construction and Repair - Permits Required - Fees - Exception, of Chapter 12.04, Streets, Sidewalks and Driveways Generally, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne, Wyoming -- referred to Finance Committee (sponsor -- Ms. Broyles).

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne supports the application of the Town of Burns for \$42,000 in State Loan and Investment Board 2015 - 2016 Countywide Consensus Block Grant funds to purchase a truck for the Burns Maintenance Department. Motion (per Consent Agenda) carried. (#5621)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2015 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Granting an exception for development of small wastewater treatment systems pursuant to the 201 Agreement for Cheyenne Power Park, a planned unit development, located generally within the NW1/4 of Section 29, T.13N., R.66W., of the 6th P.M., Laramie County, Wyoming -- referred to Public Services Committee (sponsors -- Mr. Brown and Mr. Shanor).

[CA] Preliminary Plat for Carter Cottages, a replat of portions of Tracts 245, 246, 247, 248 and a portion of the vacated east half of Arthur Road, Sunnyside Addition, 6th Filing, Cheyenne, Wyoming (located at the northwest corner of the intersection of Hayes Avenue and US Highway 30) -- referred to Public Services Committee.

[CA] Lease Agreement between the City of Cheyenne, Parks and Recreation Department, and Brian Chalstrom, d/b/a Putt Hutt, for premises used as a miniature golf course in Lions Park. Motion (per Consent Agenda) carried. (#6249)

[CA] Contract between the City of Cheyenne and I.T. Refresh, Ft. Collins, Colorado, for electronic recycling services (Solid Waste Fund). Motion (per Consent Agenda) carried. (#6250)

[CA] Contract between the City of Cheyenne, Transit Division, and Wyoming Department of Health, Aging Division, to provide supportive services to persons 60 years or older (Title III-B Program Grant) -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Cheyenne/Laramie County Corporation for Economic Development (LEADS) for industrial and economic development services -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 6151 between the City of Cheyenne, Engineering Department, and Short Elliott Hendrickson, Inc., for the 19th Street Rehabilitation Project (2011 - 2014 1% Sales Tax, BOPU Funds). Motion (per Consent Agenda) carried (amount not to exceed \$117,968.00). (#6151)

[CA] Contract Modification No. 1 to Contract No. 6190 between the City of Cheyenne and Deep Green Energy, LLC, for conditions requiring additional work in the George Cox and Jack R. Spiker parking facilities (Impact Assistance funds). Motion (per Consent Agenda) carried (amount not to exceed \$16,800.00). (#6190)

Contract Modification No. 3 to Contract No. 6115 between the City of Cheyenne and FCI Constructors of Wyoming, LLC, to establish the Guaranteed Maximum Price (GMP) for the Cheyenne Public Safety Center Project -- referred to Finance Committee. Reporting for Finance Committee, Mr. Brown advised due to timing involving construction of the proposed project, the item was reviewed under other items for the agenda at the Oct. 6, 2014 Finance Committee meeting, and provisions of Title 2 of the City Code had been met. Mr. Brown moved to approve, seconded by Mr. Luna. Lt. Mark Munari, Cheyenne Police Department and Project Manager for the new Safety Center, clarified that subsequent to the modification being approved at the Sept. 22, 2014 meeting of the governing body, it was realized that additional information and documents needed to be included (re: as part of Modification No. 3), including information on project completion dates for FCI to follow. Lt. Munari advised the actual dollar amounts were not changing. Motion carried. Voting "yes" -- all members of the governing body. (#6115)

[CA] Consideration of Bid #M-5-15 for a contract for the HR Ranch Road Greenway Gap project between the City of Cheyenne, Parks and Recreation Department, and Simon Contractors, Cheyenne, Wyoming (Development Impact Funds - Parks Infrastructure). Motion (per Consent Agenda) carried (amount not to exceed \$96,590.00). (#6251)

[CA] Consideration of Bid #R-10-15 for furnishing one new 2014-2015 wheel loader mounted snow blower from Titan Machinery, Casper, Wyoming, for the City of Cheyenne, Street and Alley Division (2011-2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-12-15 for furnishing two new vehicles for the City of Cheyenne, Youth Alternatives and Parking Divisions, from Spradley Barr Motors, Cheyenne, Wyoming (2011-2014 1% Sales Tax) -- referred to Finance Committee.

Application requesting the establishment of a Residential Critical Traffic and Parking Area

in the vicinity of the Cheyenne Regional Medical Center. Mr. Shanor moved to approve by including the expansion of the Critical Traffic and Parking area as recommended by the City Engineering Department, seconded by Mr. Cook. Clarification of the map reflecting the expanded area was provided. Upon inquiry, Mark Escobedo, Traffic Engineer, advised the intent of the Critical Traffic and Parking Area ordinance is to provide relief to residents involving residential congested parking areas, and advised the parking restrictions will not apply to business properties within the area. He explained many of the businesses may already have time limited parking restrictions in place, and provided information on residential parking permits and fine amounts for violations of the restricted parking time limits. In response to comment concerning whether Community Service Officers with the Police Department could assist with enforcement coverage, Mayor Kaysen advised he would communicate with the Police Chief regarding that possibility for patrol assistance. Motion carried. Voting “yes” -- all members of the governing body.

Announcement was made of the Re-Appointment of Judith A. Lane, to the Cheyenne Housing Authority Board, to be confirmed October 27, 2014.

Announcement was made of a public hearing to be held October 27, 2014, at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land situated in a portion of the N.E. 1/4 of the S.E. 1/4 of Section 20, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming, to be known as Scenic Development (located west of and adjacent to Converse Avenue, north of Dell Range Boulevard).

Announcement was made of a public hearing to be held October 27, 2014, at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, to receive public comment regarding the intent of the City of Cheyenne to submit an application for funding to the Wyoming Business Council’s Business Ready Community, Community Enhancement Grant Program, for the Cahill Park Universal Playground Project.

Under other business, Jeffrey Dierksen addressed the governing body with traffic and pedestrian safety concerns he and others in his neighborhood have regarding the speed limit on a portion of Pinto Lane. He referenced a petition (on file with City Clerk’s office) signed by neighborhood supporters in the area requesting re-designation of Pinto Lane as a local street, instead of a collector street; reducing the speed limit to 25 mph, and installing speed humps and a pedestrian crossing with signage. Mayor Kaysen acknowledged receipt of the petition and explained the process the City utilizes for requests of this type, particularly when an area of concern is close to schools; advised of the City’s Neighborhood Transportation Plan and MPO Corridor Plans, and stated the concerns presented would be reviewed and analyzed by applicable City staff.

Bart Stolp also addressed the governing body with traffic and pedestrian safety concerns involving a portion of Van Buren Avenue between Dell Range Blvd. and Highway 30, which includes the Dildine Elementary School area. He referenced a letter he had previously submitted to the City (on file with City Clerk’s office) that included signatures of neighbors in the area in support of reviewing the concerns presented by Mr. Stolp. He commented on high traffic speeds; suggested flashing lights be utilized near the school for student/pedestrian safety, and requested signage be located more north of the school as well as the installation of speed humps. Mayor Kaysen advised applicable City staff will review the concerns presented and will also communicate with the school district regarding the issues that Mr. Stolp had raised.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:55 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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